

THOMAS, J., concurring in judgment

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In sum, *Apodaca* is egregiously wrong, it has significant negative consequences, and overruling it would not unduly upset reliance interests. I therefore agree with the Court's decision to overrule *Apodaca*.<sup>10</sup>

JUSTICE THOMAS, concurring in the judgment.

I agree with the Court that petitioner Evangelisto Ramos' felony conviction by a nonunanimous jury was unconstitutional. I write separately because I would resolve this case based on the Court's longstanding view that the Sixth Amendment includes a protection against nonunanimous felony guilty verdicts, without undertaking a fresh analysis of the meaning of "trial . . . by an impartial jury." I also would make clear that this right applies against the States through the Privileges or Immunities Clause of the Fourteenth Amendment, not the Due Process Clause.

## I

I begin with the parties' dispute as to whether the Sixth Amendment right to a trial by jury includes a protection against nonunanimous felony guilty verdicts. On this question, I do not write on a blank slate. As the Court acknowledges, our decisions have long recognized that unanimity is required. See *ante*, at 92. Because this interpretation is not demonstrably erroneous, I would resolve the Sixth Amendment question on that basis.

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<sup>10</sup> As noted above, I join the introduction and Parts I, II-A, III, and IV-B-1 of JUSTICE GORSUCH's opinion for the Court. The remainder of JUSTICE GORSUCH's opinion does not command a majority. That point is important with respect to Part IV-A, which only three Justices have joined. It appears that six Justices of the Court treat the result in *Apodaca* as a precedent and therefore do not subscribe to the analysis in Part IV-A of JUSTICE GORSUCH's opinion.